

HOUSE No. 3457

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Chaisson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to municipal light plants.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Chaisson</i>	<i>1st Bristol</i>	<i>1/14/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>2/19/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/9/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>2/18/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/14/2025</i>

HOUSE No. 3457

By Representative Chaisson of Foxborough, a petition (accompanied by bill, House, No. 3457) of Michael S. Chaisson, Peter J. Durant and Hannah Kane relative to municipal light plants. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3142 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to municipal light plants.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4A of Chapter 40 of the General Laws as appearing in the 2022
2 Official Edition, is hereby amended by deleting in line 8 after the word “selectmen” the word
3 “and ”.

4 SECTION 2. Said section of said chapter is hereby further amended by adding in line 9
5 after the word “committee” the following words: , in a municipal light plant by the board or
6 commission;

7 SECTION 3. Said section of said chapter is further amended by deleting in line 28 the
8 word “or” the first time it appears.

SECTION 4. Said section of said chapter is further amended by deleting in line 29 “.”
and by adding the following words: , or a municipal light plant established under chapter 164 or
by special law.

Section 4. Section 47B of Chapter 164 of the General Laws as appearing in the 2022
Official Edition is hereby amended by adding the following:

Any municipality acting by and through its municipal light board may provide services
and assistance to any municipal or state utility, tribal utility as defined in 25 CFR § 169.2, or any
other publicly-owned or operated utility, whether located inside or outside of the
Commonwealth, and governmental units as defined in section 4A of chapter 40, to construct,
install, alter, operate, maintain or repair utility poles and conduit, wires, cables, and equipment,
and streetlights and traffic signals to the same extent such municipality acting by and through its
municipal light board may provide such services within its service territory. Any such
municipality acting by and through its municipal light board may sell, rent, or lease merchandise,
equipment, fixtures, utensils and chattels of any description related to the provision of such
services. Any employee providing such services entered into between the municipality acting by
and through its municipal light board and such other public entity shall be subject to the
provisions of chapter thirty-two, sections one to twenty-eight, inclusive, and shall have the same
rights and privileges thereunder, as if performing the same duties within the scope of his
employment including voluntary assignments.